

SOURCES SOUGHT NOTICE

GENERAL INFORMATION

SUBJECT: Bio-hazard and Hazardous Pharmaceutical Waste Retrieval and Disposal Services

NAICS CODE: 562112 Hazardous Waste Collection

POINT OF CONTACT: Minkyu Kim at minkyu.kim@ihs.gov

PLACE OF PERFORMANCE (DELIVERY ADDRESS): Whiteriver Service Unit, Whiteriver, AZ

RESPONSE DATE/TIME: 5/11/2026

BUY INDIAN ACT

The IHS Contracting Officer will give priority for all purchases, regardless of dollar value, by utilizing ISBEE set-aside to the maximum extent possible. Each acquisition of supplies, services or construction that is subject to commercial items (FAR 12.209) or Simplified Acquisition Procedures (SAP) (FAR 13.106) must be set-aside exclusively for ISBEES.

Definition(s): INDIAN ECONOMIC ENTERPRISE (IEE) - Any business activity owned by one or more Indians, Federally Recognized Indian Tribes, or Alaska Native Corporations provided that:

-  The combined Indian, Federally Recognized Indian Tribe or Alaska Native Corporation ownership of the enterprise constitutes not less than 51%;
-  The Indian, Federal Recognized Indian Tribes, or Alaska Native Corporations must, together, receive at least 51% of the earnings from the contract; and
-  The management and daily business operations must be controlled by one or more individuals who are Indians.

Definition: INDIAN SMALL BUSINESS ECONOMIC ENTERPRISE (ISBEE) – An IEE that is also a small business concern established in accordance with the criteria and size standards of 13 CFR Part 121.

DESCRIPTION OF REQUIREMENT

The contractor shall provide all labor, equipment, supplies, and regulatory-compliant services to collect, transport, and dispose of biohazardous and hazardous pharmaceutical waste—including RCRA and non-RCRA materials—on a scheduled basis for the Indian Health Services Whiteriver Service Unit, in accordance with all applicable federal, state, tribal, EPA, and OSHA requirements.

INTERESTED PARTIES

THIS IS A SOURCES SOUGHT NOTICE ONLY; IT IS NOT A REQUEST FOR QUOTE, RATHER MARKET RESEARCH TO DETERMINE COMPLAINEE WITH THE BUY INDIAN ACT AND DETERMINATION OF SET-ASIDE.

All interested firms who can meet the requirements stated above should respond, in writing, INCLUDING ALL THE FOLLOWING:

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1. Company name.
2. Point of contact (name/title/telephone number/e-mail address).
3. FSS / SEWP Contract number, if applicable.
4. DUNS number OR SAM Unique Entity Identifier Number.
5. Tax ID number.
6. Indication of which business category (IEE or ISBEE) for which the organization qualifies.
7. A capability statement that addresses the organizations qualifications and ability to provide the requirement depicted above.
8. Documentation from manufacturer (i.e., correspondence from manufacturer) of your firm being an authorized distributor for the manufacturer. See Attachment 1: Gray Market Prevention Language.

Additionally, since IHS must conduct sufficient market research in determining if there is reasonable expectation of obtaining offers from two or more Indian Economic Enterprises (IEE), for every commercial contract opportunity, in accordance with HHSAR 326.603-1.

To identify and support responsible IEE/ISBEE(s) and prevent circumvention or abuse of the Buy Indian Act, interested, qualified, vendors must provide the following:

-  Representation must be made on the designated IHS Indian Economic Enterprise Representation form (attached) through which the offeror will self-certify eligibility; and,
-  Identify the Federally Recognized Indian Tribe or Alaska Native Corporation upon which the offeror relies for its IEE status.

Interested firms are reminded that in accordance with FAR 4.12, prospective contractors shall complete electronic annual representations and certifications in conjunction with FAR 4.1102 required to be registered in the Systems for Award Management (SAM) **at the time an offer or quotation is submitted** in order to comply with the annual representations and certifications requirements. The Government will use responses to this notice to make an appropriate acquisition decision. This is the only notice; no other copies of this notice will be provided.

Attachment 1: IHS Indian Economic Enterprise Representation form

Attachment 2: Statement of Work